

24NNCV06030 24NNCV06030

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-10

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Case Number: 24NNCV06030 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 13

Date: July 10, 2026

Case No: 24NNCV06030 Trial Date: May 10, 2027

Case Name: Thang v. Redstone Grocers, Inc.

MOTION FOR SUMMARY JUDGMENT

[CCP § 437c]

Moving Party: Defendant, Redstone Grocers, Inc., dba Hoa Binh Rosemead Supermarket

Responding Party: Plaintiff, Khai Va Thang

RELIEF REQUESTED:

Grant summary judgment on Plaintiff's Complaint in favor of Defendant.

CAUSES OF ACTION: from Form Complaint

1) Premises Liability

2) General Negligence

SUMMARY OF FACTS:

Khai Va Thang ("Plaintiff") alleges that on April 19, 2024, Plaintiff was at premises owned, maintained, managed and operated by Redstone Grocers, Inc., dba Hoa Binh Rosemead Supermarket ("Defendant"). The Complaint alleges that Plaintiff unknowingly stepped on a wet and slippery substance on the floor, causing Plaintiff to fall. Plaintiff alleges that Defendant negligently, carelessly, and recklessly failed to maintain, supervise or operate said premises resulting in the existence of a dangerous condition about which Defendant knew or should have known. The Complaint alleges that the dangerous condition was the actual and proximate cause of Plaintiff's damages.

ANALYSIS:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a pleading or claim and, if not, to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) CCP section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82.)

As to each claim as framed by the complaint, the defendant or cross-defendant must satisfy the initial burden of proof by showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (CCP, § 437c subd. (p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (CCP, § 437c subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]" (*Id.* at p. 840; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

First and Second Causes of Action, Premises Liability and Negligence

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 674 [disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5].)

To establish liability, "[t]here must be some evidence . . . to support the conclusion that the condition had existed long enough for the proprietor, in the exercise of reasonable care, to have discovered and remedied it." (*Girvetz v. Boys' Market* (1949) 91 Cal.App.2d 827, 829; *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206 [the owner must have had actual or constructive knowledge of the dangerous condition or have had the ability, through the exercise of ordinary care, to discover it, and

sufficient time to correct it].) However, “[t]he plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence.” (Ortega, supra, 26 Cal.4th at p. 1206.)

Typically, the question of whether a condition existed so long as to be discoverable within a reasonable time is a question of fact to be decided by the jury. (Hatfield v. Levy Bros. (1941) 18 Cal.2d 798, 807; Tuttle v. Crawford (1936) 8 Cal.2d 126, 130; Rothschild v. Fourth & Market St. Realty Co. (1934) 139 Cal.App. 625, 627.)

However, if there is no substantial evidence from which it can be reasonably inferred that the condition existed for a sufficient period of time to charge the defendant with constructive notice of its presence and to remedy the condition, a defendant may be entitled to judgment as a matter of law. (Perez v. Ow (1962) 200 Cal.App.2d 559, 562.)

Defendant argues that there is no evidence that a dangerous condition existed at the supermarket that caused Plaintiff to fall. Defendant asserts that Plaintiff testified he did not observe any water on the floor before his fall. Rather, Defendant argues that Plaintiff testified that he observed water on the floor only after falling and merely speculates that the water caused his fall. (Mot., p. 9:3-9.)

Defendant presents the following excerpt from Plaintiff's deposition:

Q. Do you know what you fell on, meaning do you know what made you fall?

A. No, I did not see what I had stepped on.

Q. After you fell, did you look around the area to see what made you fall?

A. I think it was water. It was water on the floor.

Q. Did you see the water on the floor after your fall?

A. Yes, I saw the water.

Q. Do you know where that water came from?

A. I don't know.

Q. Do you know how long the water had been there before you fell?

A. I don't know. I don't know.

(Vallejo Decl., Ex. B [Plaintiff's Deposition, p. 19:2-19].)

Defendant presents evidence that on the date of the incident, no employees saw or were told that someone had fallen nor were any spills or wet areas reported. (Han Decl., ¶ 4.) Defendant presents evidence that employees monitor the fruit and vegetable area of the store every ten minutes and immediately clean up any reported water or spills. (Han Decl., ¶¶ 3, 6.)

Defendant also presents evidence that a few days after the incident, Plaintiff and the store manager reviewed the security footage from the day of the incident for an hour before and hour after the alleged fall, and they did see Plaintiff falling nor did they see anything spilled or wet in the area where Plaintiff allegedly fell. (Han Decl., ¶ 5.)

Defendant has demonstrated that there is no evidence of a dangerous condition which caused Plaintiff to slip and fall, as could support the causation element of Plaintiff's premises liability and negligence claims. Plaintiff's conjecture that the water caused him to fall is insufficient. "Speculation does not establish causation." (Peralta v. Vons Companies, Inc. (2018) 24 Cal.App.5th 1030, 1036.) Moreover, there is no evidence that the allegedly dangerous condition was created by or known to Defendant. Nor is there any evidence that Defendant failed to adequately monitor or maintain the area, as could support the breach element of Plaintiff's claims.

Accordingly, Defendant has met its burden to show that one or more elements of Plaintiff's causes of action cannot be established. The burden thus shifts to Plaintiff to establish that triable issues of fact exist.

"To meet its burden of proof, a plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant." (Peralta, supra, 24 Cal.App.5th at p. 1035, internal citations and quotations omitted.)

In the opposition, Plaintiff presents his own declaration asserting that he observed Defendant's employee mopping the produce area immediately before the incident. (Thang Decl., ¶ 7.) However, this declaration directly contradicts Plaintiff's deposition testimony in which he testified that he did not know what made him fall and that he did not know from where the water on the floor had come. (Vallejo Decl., Ex. B [Plaintiff's Deposition, p. 19:2-19].) A party may not create a triable issue of fact to defeat summary judgment by submitting a self-serving declaration that contradicts their own deposition testimony. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

Plaintiff argues that Defendant's reliance on Peralta, supra and Buehler v. Alpha Beta Co (1990) 224 Cal.App.3d 727 is misplaced because in those cases the plaintiffs did not observe any dangerous conditions causing their falls. (Opp., pp. 5:24-6:16.) However, as discussed above, Plaintiff may not rely on his declaration regarding the alleged source of the water as it directly contradicts his prior deposition testimony.

Assuming that the supermarket floor was wet, and that the water caused Plaintiff's fall, Plaintiff nevertheless fails to present evidence that Defendant breached its duty to maintain the premises in a reasonably safe condition. Plaintiff testified that he did not know where the water had come from or how long it had been there before he fell. (Vallejo Decl., Ex. B [Plaintiff's Deposition, p. 19:12-19].) Plaintiff testified that he did not see anything on the floor that gave him concern. (Le Decl., Ex. C [Plaintiff's Deposition, p. 17:14-16].) Plaintiff presents no evidence that Defendant had actual knowledge of water on the floor nor any evidence that water was on the floor for a sufficient period of time to charge Defendant with constructive notice of its presence and to remedy the condition.

Plaintiff further argues that Defendant cannot establish liability because Defendant has no documents relating to inspections, maintenance, cleaning, or monitoring of the area where Plaintiff allegedly fell. (Le Decl., ¶ 9 [Def.'s Resp. to RFP No. 12].) However, Defendant has presented a declaration from the store manager attesting to Defendant's inspection and maintenance procedures. (Han Decl., ¶¶ 3-4, 6.) This evidence is sufficient to satisfy Defendant's initial burden on summary judgment. The burden therefore shifts to Plaintiff to produce substantial responsive evidence demonstrating the existence of triable issue of fact. Plaintiff fails to meet that burden. Plaintiff presents no evidence disputing the store manager's declaration or otherwise creating a triable issue of fact as to whether Defendant's employees were acting in accordance with Defendant's inspection and maintenance procedures. Lastly, Plaintiff does not dispute that the surveillance footage neither depicts any water on the floor nor shows Plaintiff falling. Rather, Plaintiff argues only that he could not confirm that the footage corresponded to the date and time of the alleged incident because he did not see a date or time stamp. (Han Decl., ¶¶ 17-18.)

Even viewing all the evidence in the light most favorable to Plaintiff, Plaintiff fails to sustain his burden of proof. There is no admissible evidence to create a triable issue of material fact as to whether Defendant was on notice that the floor was dangerous or can be held liable for failing to remedy it.

The motion is GRANTED.

RULING:

Defendant Redstone Grocers, Inc., dba Hoa Binh Rosemead Supermarket's Motion for Summary Judgment is GRANTED.

Defendant's Evidentiary Objections:

Thang Declaration

Nos. 1-2: OVERRULED

No. 3: SUSTAINED [legal conclusion]

Nos. 4-5: SUSTAINED [declaration contradicts deposition testimony, see D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.])

No. 6: SUSTAINED [hearsay]

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.